

*Doran*, 439 U. S. 282, 286 (1978). Its mandatory language furthers its intended purposes: "to enable each state to bring offenders to trial as swiftly as possible in the state where the alleged offense was committed," and "to preclude any state from becoming a sanctuary for fugitives from justice of another state." *Id.*, at 287; see *Biddinger v. Commissioner of Police*, 245 U. S. 128, 132-133 (1917); *Appleyard v. Massachusetts*, 203 U. S. 222, 227 (1906). The Framers of the Constitution perceived that the frustration of these objectives would create a serious impediment to national unity, and the Extradition Clause responds to that perception. "It would have been far better to omit it altogether, and to have left it to the comity of the States, and their own sense of their respective interests, than to have inserted it as conferring a right, and yet defining that right so loosely as to make it a never-failing subject of dispute and ill-will." *Kentucky v. Dennison*, 24 How., at 102. We reaffirm the conclusion that the commands of the Extradition Clause are mandatory, and afford no discretion to the executive officers or courts of the asylum State. See *California v. Superior Court of California*, 482 U. S. 400, 405-406 (1987).

The second, and dispositive, holding of *Kentucky v. Dennison* rests upon a foundation with which time and the currents of constitutional change have dealt much less favorably. If it seemed clear to the Court in 1861, facing the looming shadow of a Civil War, that "the Federal Government, under the Constitution, has no power to impose on a State officer, as such, any duty whatever, and compel him to perform it," 24 How., at 107, basic constitutional principles now point as clearly the other way. Within 15 years of the decision in *Dennison* it was said that "when a plain official duty, requiring no exercise of discretion, is to be performed, and performance is refused, any person who will sustain personal injury by such refusal may have a *mandamus* to compel its performance," and it was no objection that such an order might be sought in the federal courts against a state officer. *Board of Liquidation v. McComb*, 92 U. S. 531, 541 (1876).

It has long been a settled principle that federal courts may enjoin unconstitutional action by state officials. See *Ex parte Young*, 209 U. S. 123, 155–156 (1908). It would be superfluous to restate all the occasions on which this Court has imposed upon state officials a duty to obey the requirements of the Constitution, or compelled the performance of such duties; it may suffice to refer to *Brown v. Board of Education*, 349 U. S. 294 (1955), and *Cooper v. Aaron*, 358 U. S. 1 (1958). The fundamental premise of the holding in *Dennison*—“that the States and the Federal Government in all circumstances must be viewed as coequal sovereigns—is not representative of the law today.” *FERC v. Mississippi*, 456 U. S. 742, 761 (1982).

Yet, with respect to extradition, the law has remained as it was more than a century ago. Considered *de novo*, there is no justification for distinguishing the duty to deliver fugitives from the many other species of constitutional duty enforceable in the federal courts. Indeed the nature of the obligation here is such as to avoid many of the problems with which federal courts must cope in other circumstances. That this is a ministerial duty precludes conflict with essentially discretionary elements of state governance, and eliminates the need for continuing federal supervision of state functions. The explicit and long-settled nature of the command, contained in a constitutional provision and a statute substantially unchanged for 200 years, eliminates the possibility that state officers will be subjected to inconsistent direction. Because the duty is directly imposed upon the States by the Constitution itself, there can be no need to weigh the performance of the federal obligation against the powers reserved to the States under the Tenth Amendment.

Respondents contend, however, that an “executive common law” of extradition has developed through the efforts of Governors to employ the discretion accorded them under *Dennison*, and that this “common law” provides a superior alternative to the “ministerial duty” to extradite provided for by the Constitution. Tr. of Oral Arg. 21. Even assum-